

# IP-SAKTI SAHAYAK

## STATUTORY IP FRAMEWORK GUIDE [EN]

Compliance with Indian Patents Act 1970, BDA 2024, GSR 918(E), and CSIR-TKDL

### 1. Section 3(p) - Traditional Knowledge Exclusion

Under Section 3(p) of the Indian Patents Act, an invention which in effect is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components is not an invention. Applicants must establish non-obvious technological synergy or inventive step beyond TKDL references.

### 2. Section 3(e) - Mere Admixture & Synergistic Burden

Section 3(e) excludes a substance obtained by a mere admixture resulting only in aggregation of the properties of the components thereof. To overcome 3(e), applicants must demonstrate statutory synergy with quantitative pharmacological proof (e.g., CI < 1.0 or bio-enhancement indices).

### 3. Biological Diversity Act (BDA 2002 / 2024)

Section 3 & 19 mandate NBA prior approval for foreign entities/IPRs. Section 7 requires prior intimation to State Biodiversity Boards (SBB) for commercial utilization of Indian bio-resources. Section 24 governs equitable Access and Benefit Sharing (ABS).

### 4. Drugs & Cosmetics Act (GSR 918(E)) - Phytopharmaceuticals

Defines regulatory tracks for purified fractions of medicinal plants. Mandates chromatographic profiling, stability testing, toxicological safety, and clinical trial evidence as per CDSCO / AYUSH guidelines.

### 5. TKDL Defensive Protection

CSIR Traditional Knowledge Digital Library serves as prior art across 34+ international patent offices (USPTO, EPO, JPO, etc.) preventing biopiracy and wrongful patent grants.